



POLICE DEPARTMENT

January 31, 2011

MEMORANDUM FOR: Police Commissioner

RE: Police Officer Luis Lopez
Tax Registry No. 930590
71 Precinct
Disciplinary Case No. 84649/08

The above-named member of the Department appeared before me on September 23, 2010, and November 9, 2010, charged with the following:

1. Said Police Officer Luis Lopez, assigned to the 71st Precinct, while on-duty, on or about October 20, 2008, at a location known to this Department in Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Officer did fail and neglect to properly safeguard a prisoner resulting in said prisoner's temporary escape.

P.G. 203-05, Page 2, Paragraph 12 – GENERAL REGULATIONS
P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS

2. Said Police Officer Luis Lopez, assigned to the 71st Precinct, while on-duty, on or about October 20, 2008, at a location known to this Department in Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Officer did fail and neglect to immediately notify a supervisor that a prisoner had escaped.

P.G. 203-05, Page 1, Paragraph 1 – GENERAL REGULATIONS
P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS

3. Said Police Officer Luis Lopez, assigned to the 71st Precinct, while on-duty, on or about October 20, 2008, at a location known to this Department in Kings County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Officer did fail and neglect to properly safeguard three prisoners in his custody, to wit: said Officer did leave three prisoners unattended in a Department van while he accompanied Police Officer Peter Gulizio in the pursuit of a fourth prisoner who escaped while in police custody. *(As amended)*

P.G. 203-05, Page 2, Paragraph 12 – GENERAL REGULATIONS
P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS

The Department was represented by Penny Bluford-Garrett, Esq , Department Advocate's Office, and the Respondent was represented by John Tynan, Esq

The Respondent, through his counsel, entered a plea of Guilty to two of the subject charges and a plea of Not Guilty to the remaining charge. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent, having pleaded Guilty, is found Guilty of Specification Nos. 1 and 2. The Respondent is found Not Guilty of Specification No. 3.

SUMMARY OF EVIDENCE PRESENTED

Introduction

It is not disputed that on October 20, 2008, the Respondent and his partner Police Officer Peter Gulizio, who were assigned to the 71 Precinct, both performed a "midnight tour" of duty which started at 2315 hours and ended at 0750 hours. Although they were initially assigned to perform patrol duties that night, during the course of their tour, they were reassigned to perform prisoner transport duties in a marked Department prisoner van. They were directed to transport four male prisoners, including a prisoner named Michael James, from the 71 Precinct to Brooklyn Central Booking.

The Department's Case

The Department called Police Officer Peter Gulizio as its only witness.

Police Officer Peter Gulizio

Officer Gulizio, who has been a member of the Department for eight years and who has been assigned to the 71 Precinct for over seven years, recalled that after he and the Respondent were directed to transport four male prisoners from the 71 Precinct to Brooklyn Central Booking, they went to the cell area inside the 71 Precinct and removed the four prisoners from the holding cell one at a time. Each prisoner was required to empty his pockets. Each prisoner's wallet was examined and body frisk searches were conducted on all four, including examining their pockets, shirts, shoes and socks, to insure sure they had no contraband on their persons. After they had been searched, the prisoners were handcuffed together in pairs, two prisoners per one set of handcuffs, wrist to wrist. After the handcuffs were placed on the prisoners in the 71 Precinct cell area, they walked them out to the Desk Sergeant. The Desk Sergeant, who was Sergeant Paul Adams, then took their paperwork, a packet consisting of a photo and an online form. Sergeant Adams then signed them out of the Command Log.

Gulizio and the Respondent then left the Precinct and placed the four male prisoners into the prisoner van. There were no other prisoners in the van. The van had been searched at some point prior to placing the four prisoners into the van, but Gulizio could not recall who had conducted the van search. The van has three benches. Gulizio and the Respondent placed the prisoners inside the van together. Gulizio sat down in the front passenger's seat and the Respondent sat down in the driver's seat. Gulizio recalled that the drive from the 71 Precinct to Brooklyn Central Booking took about 15 to 20 minutes.

Upon arrival at Brooklyn Central Booking, the Respondent parked the van in one of the parking spots opposite the entrance. They exited on opposite sides of the van and met at the double door. They opened the doors and pulled the four prisoners out and proceeded in a line across the street to the entrance. The Respondent was in front and Gulizio was at the rear holding onto the handcuffs of the prisoner who was closest to him. Gulizio recalled that at the 71 Precinct, Michael James had asked him to loosen one of his handcuffs and Gulizio had done this.

As they were approaching a ramp which goes down into the building, James "took off." Gulizio chased after him on foot and followed him down the next street and then down "a few unknown blocks." James then ran down into a walkway under the building. Gulizio ran down after him. James then jumped over a fence and then "broke into someone's house." As Gulizio was climbing over the fence, he heard glass shattering. Gulizio ran through a shattered door and proceeded down the hallway of an apartment. He encountered a man and he asked him, "Where are we? Where did he go?" This man told him the address of the building and he pointed in the direction of the front of the building which faces the street. As Gulizio was running in that direction, his cell phone rang. He removed his cell phone from his pocket and saw "PO Lopez" on his caller ID. At that point, he had reached the front of the building and he immediately saw the Respondent pull the van up outside the building.

As Gulizio exited the front of the building, he could see James "like squiggling around" in between cars. Gulizio yelled to the Respondent, who was inside the van, "He's over there!" The Respondent pulled the van in front of a driveway and angled the van towards where James was laying on the ground in between cars. The

Respondent exited the van and stood on the side of the van. Gulizio grabbed James but he was unable to secure him because Gulizio was tired and out of breath and could not hold him too well. As Gulizio tried to grab James' hands, James wrestled with him. The Respondent went back to the van to get a set of handcuffs. James stretched his arms out so that Gulizio could not get a good hold on him. The Respondent tried to help Gulizio secure James, but James got away and ran down the street.

The Respondent went back to the van and Gulizio pursued James down the street. As Gulizio ran after James, the Respondent drove the van alongside Gulizio down the street "pretty much parallel" to him. Gulizio testified that as he reached the end of a row of parked cars, exhaustion overtook him and he stopped chasing James down the street. The Respondent stopped the van next to Gulizio who went over to the van, leaned against the van near the left front tire, put his hands on his knees and told the Respondent that he could not run any further. The Respondent got out of the van and told him to stay there with the van. The Respondent ran after James and followed him into an alleyway. Gulizio lost sight of them. Gulizio did not make any notifications to any supervisors. The Respondent then came out of the alleyway with James in his custody and they brought James back into the van and secured James to the same prisoner that he had been handcuffed to. James was not putting up a fight at that point.

The Respondent drove the van back to the same parking spot where they had been parked when James escaped. Gulizio recalled that after he exclaimed, "How the hell did this happen?" James said that somebody had given him a handcuff key. Gulizio was asked, "Did there ever come a time when you notified the Department or any supervisors regarding the escape of Mr. James?" He responded, "I was pretty shocked at what

happened I didn't know what to do I didn't know who to call The paperwork was gone Everything I had on these guys was gone, so I didn't know who I had with me other than Mr James I didn't know who was with us I called up the delegate on the midnight tour and he came down and helped guide us through the situation " The prisoners were ultimately taken to Brooklyn Central Booking and Gulizio recalled that he helped transport James to the 84 Precinct

Gulizio was later suspended for 21 days and then restored to duty Gulizio recalled that he was served with Charges and Specifications alleging that he had allowed the temporary escape of a prisoner in his custody He pleaded guilty to that charge on June 29, 2010, with the understanding that a penalty recommendation would be made to the Police Commissioner that he forfeit the 21 days he had served on suspension

On cross-examination, Gulizio recalled that three to five minutes elapsed from the time that the Respondent pulled the van up to him as he was chasing James to the time that the Respondent apprehended James and that during this pursuit of James, the three other prisoners were all handcuffed inside the van and none of them left the van Gulizio did not move away from the side of the van near the front tire until the Respondent returned holding James Gulizio recalled when he was chasing James, the Respondent had called his cell phone to see where he was and that as he received this call he saw the van pull up nearby Gulizio estimated that "a minute or so" elapsed from the time that he found James underneath a car and tried to apprehend him to the time that James ran off for a second time When the Respondent hopped out of the van to assist him, the van was "right there," parked in an open space in front of a driveway, "a couple of feet at the most" from where the Respondent was trying to assist him get control of James

The Respondent's Case

The Respondent testified in his own behalf

The Respondent

The Respondent recalled that after he and Gulizio removed the four prisoners from the cells in the 71 Precinct, they searched each prisoner and handcuffed each prisoner and then brought them to the front desk because the Desk Sergeant is required to double check the handcuffs and to sign each prisoner out. At the desk, the Respondent informed the Desk Sergeant that one of the prisoners that was being transported had a stamp on his movement slip that read "prisoner walk through," which meant that because the prisoner had to be walked down to the courtroom in the morning, he was not supposed to be transported with every other prisoner. Another marking on this movement slip indicated that this prisoner had been removed to the hospital three times within the past two days and that his fingerprints could not be taken. This prisoner did not cause any problems. After handcuffing the four prisoners to one another, they were placed in the van. It took about ten minutes for the Respondent to drive the prisoners from the 71 Precinct to Central Booking. They arrived there at about 0300 hours. The Respondent parked the van directly in front of the ramp leading into Central Booking.

Gulizio got out of the van first and opened the two rear doors on the van, which has a total of six doors. The Respondent walked around to the rear of the van and they offloaded the four prisoners. As they proceeded to walk toward the ramp to go down into Central Booking, the Respondent was standing in the front position, on the left-hand side

of the first two prisoners Gulizio was to the right of the prisoners, standing beside the rear two prisoners. The Respondent had his arm on the front prisoner. As he turned around and said, "Okay, guys, we're going down the ramp," James, the prisoner who was standing directly behind the front prisoner, began running. James ran right past Gulizio, who began running after him. The Respondent grabbed the three other prisoners, opened the van, and ushered them back into the van.

The Respondent jumped into the van and drove off in the same general direction that he had seen Gulizio running. He called Gulizio on his cell phone. Gulizio answered his phone and said, "I'm right here." As the Respondent got to the corner, he looked to his left and saw Gulizio exiting a brownstone. As the Respondent pulled up to him, Gulizio asked him, "Do you see the prisoner?" The Respondent answered, "No, I didn't see him. He didn't come down this way." At that moment, he spotted James, who was getting out from underneath a vehicle. Gulizio chased James into the street and grabbed him. As the Respondent pulled up to them, he could see Gulizio in the middle of the street fighting with James. The Respondent jumped out of the van and tried to help Gulizio get James under control and pin him down on the ground. Since Gulizio had gotten James into a sitting position and Gulizio had his hand on James' shoulder, the Respondent went back to the van intending to move it up so that they could get him into the van and secure him with the three prisoners that were inside the van. At this point, one of the prisoners inside the van started waving at the Respondent to turn around. When he turned around, he saw James running down the street and Gulizio chasing him.

The Respondent again jumped into the van and drove off in the same direction that he had seen Gulizio chasing James. James ran into a dark alley just as his partner ran

up to the van and stopped about three to five feet from the van. Gulizio was two feet away from the van when the Respondent jumped out of the van and told him, "You grab the van and I'll get him!" The Respondent ran into the alley. He saw James inside the alley trying to climb a fence. He tackled James in the alleyway. As he was dragging James out of the alleyway, James kept telling him, "Kill me!" He got back to the van with James in tow one minute later. James was arrested for escaping from custody by the 84 Precinct Detective Squad. The Respondent believed that the 84 Detective Squad also arrested him for burglary and menacing for running through a person's house during the chase. Once he brought James back into the van, he did not have any other problems keeping him secure inside the van. While the Respondent was driving the van during the chase, the other three prisoners remained inside the van. When the Respondent jumped out to help his partner, he turned around and told them, "Don't even think about it." They responded, "We just want to go to court. Let's catch him." They stayed inside the van the entire time.

On cross-examination, the Respondent testified that the first time he jumped out of the van he did so to assist Gulizio when he saw that Gulizio and James were fighting. He tried to help Gulizio restrain James. Since the van, at this point, was to his right, he did not have constant observation of the van but he was outside of the van less than one minute when James broke free and ran away again. As Gulizio went after James on foot, he followed them in the van for one full block and half of the next block. After he cut James off with the van, James ran up an alleyway. Since Gulizio was out of breath, he stayed by the van as the Respondent exited the van again and followed James up the alleyway. Gulizio did not go inside the van. He remained outside of the van. It took the

Respondent less than one minute to apprehend James in the alleyway After he apprehended James in the alleyway, he notified a supervisor about his escape

The Respondent testified that the other three prisoners remained inside the van and that they could not have escaped from the van through the rear doors because they can only be opened with a key from outside the van He testified that the first time he jumped out of the van he only did so because Gulizio and James were fighting and he could see from his partner's face that, having already chased James for three or four blocks, he was exhausted, that ' he's barely got anything left.' and that James was "getting ready to take off again " They got James into a sitting position in the middle of the street a few feet in front of the van Gulizio was holding him by his shoulder when the Respondent turned around to go back to the van to get handcuffs James then jumped up to his feet and ran away again The Respondent noticed that James was running again and that his partner had given chase again when the prisoners in the van waved at him to turn around He did not leave the van again until he started chasing James down the alleyway, at which point his partner was standing right next to the van When he jumped out of the van the first time, he did not take the keys out of the ignition because "there was no time for that " The back doors were all locked The driver's door was left wide open

On redirect examination, he recalled that the driver's door was open for less than one minute and that he was only two feet away helping his partner subdue James Since the three prisoners inside the rear of the van were handcuffed together, to get out the driver s door they would have had to climb together over three rows of seats and then get

past the computer which is located in between the driver's seat and the front passenger's seat

FINDINGS & ANALYSIS

Specification Nos 1 and 2

The Respondent has pleaded guilty to these charges that he engaged in conduct prejudicial to the good order, efficiency or discipline of the Department by failing to properly safeguard a prisoner, James, resulting in the prisoner's temporary escape, and by failing to immediately notify a supervisor that James had escaped

The Respondent, having pleaded Guilty, is found Guilty of Specification Nos 1 and 2

Specification No 3

It is charged that the Respondent left three prisoners "unattended" in the van while he "accompanied" Gulizio "in the pursuit of" James. I find the Respondent Not Guilty because the Department did not sufficiently prove that the Respondent ever left the three remaining prisoners "unattended" in the van, or that he ever accompanied Gulizio during his foot pursuit of James.

Gulizio, the only witness called by the Department, corroborated the Respondent's testimony that after James escaped from them in front of Central Booking, the Respondent got out of the van only twice. I find that he had a legitimate and necessary police purpose to get out of the van on both of these occasions.

Regarding the first time he got out of the van, based on Gulizio's own description of his physical struggle with James, which took place at a point when he was already tired from his initial foot pursuit of James, James could have injured Gulizio. Thus, if the Respondent had remained inside the van and had not come to his partner's assistance, he could have been charged with misconduct for failing to come to his assistance when he was in danger of being injured by James.

Moreover, Gulizio corroborated the Respondent's testimony that his physical struggle with James took place in front of the van only a few feet away from the van. Based on these facts, I cannot ascribe to the Department's position that the Respondent committed misconduct by leaving three prisoners who were handcuffed together inside the rear of the van "unattended."

Regarding the second time the Respondent got out of the van, Gulizio corroborated the Respondent's testimony that Gulizio was about to collapse from exhaustion from his foot pursuit of James when he approached the van, and that the Respondent did not take over the pursuit and begin running after James on foot until Gulizio was standing right next to the van in a position to insure that the three prisoners inside the van were attended to and could not escape from the van.

Thus, Gulizio corroborated the Respondent's testimony that the Respondent never "accompanied" Gulizio during his foot pursuit of James and Gulizio corroborated the Respondent's testimony that when the Respondent took over Gulizio's foot pursuit of James, the Respondent did not leave the three prisoners inside the van "unattended."

The Respondent is found Not Guilty of Specification No. 3.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined See *Matter of Pell v Board of Education*, 34 N Y 2d 222 (1974)

The Respondent was appointed to the Department on July 1, 2002 Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum

The Respondent has pleaded guilty and admitted that he engaged in conduct prejudicial to the good order, efficiency or discipline of the Department by failing to properly safeguard a prisoner, resulting in the prisoner's temporary escape, and by failing to immediately notify a supervisor that the prisoner had escaped

The Assistant Department Advocate (the Advocate) recommended as a penalty that the Respondent forfeit the 21 days he served on pre-trial suspension and that he also forfeit nine vacation days, for a total forfeiture of 30 days, and that he also be required to serve one year on dismissal probation

Although the Respondent has never previously been the subject of Charges and Specifications, the Advocate argued that the Respondent should be placed on dismissal probation because, in May, 2008, the Respondent signed a Command Discipline (CD) which charged him with having failed to make constant observation of a hospitalized prisoner He forfeited three vacation days regarding this CD

In further support of her penalty recommendation, the Advocate cited to Case Nos 83066/07 and 83011/07, signed March 25, 2009 in which a 14-year member with no prior disciplinary record forfeited 45 days (consisting of 11 vacation days and 34 suspension days already served) and was placed on dismissal probation, after he pleaded

guilty to charges which included a charge that a prisoner had escaped from the van that he was driving. The member's partner forfeited 41 days (consisting of ten vacation days and 31 suspension days already served) and was placed on dismissal probation for the same misconduct. However, in those cases, unlike the present case, the members committed the additional misconduct of participating in a scheme to conceal their knowledge of the escape and failing to notify the Internal Affairs Bureau that they were aware of serious misconduct involving other members of the service.

The Advocate also cited to Case Nos. 81912/06 and 81914/06, signed October 2, 2007, in which two three-year members with no prior disciplinary records each forfeited 40 days (ten vacation days added to 30 suspension days already served) and were placed on dismissal probation for losing a prisoner and for failing to make notifications about the prisoner's escape. However, in those cases, unlike the present case, the members did not apprehend the escaped prisoner and they committed additional misconduct by declining to assist the detective squad regarding the case against the prisoner.

In recent cases where members have pleaded guilty to failing to properly safeguard a prisoner resulting in the prisoner's escape, the penalties imposed have consistently been within a range of ten to 18 days.¹ For example, in Case No. 82192/06, signed January 12, 2009, a 13-year police officer who had no prior disciplinary record forfeited 11 days served on suspension after the member pleaded guilty to failing to safeguard a prisoner while in court resulting in the prisoner's escape from the courtroom. Also, in Case No. 84821/09, signed July 15, 2009, a five-year member with no prior

¹ Although in Case No. 83508/07, signed January 9, 2009, a three-year member with no prior disciplinary record forfeited 31 suspension days already served after the member pleaded guilty to losing a prisoner during transport to Central Booking, in that case, unlike the facts here, the member also failed to conduct an investigation into the prisoner's disappearance.

disciplinary record forfeited 15 vacation days after the member pleaded guilty to failing to ensure that a prisoner was securely handcuffed to a fixed object resulting in the prisoner's escape. Also, in Case No 85125/09, signed September 16 2009, a three-year member with no prior disciplinary record forfeited ten suspension days already served after he pleaded guilty to failing to safeguard a hospitalized prisoner who escaped while member was reading a newspaper in the hallway. Also, in Case No 83319/07, signed September 24, 2009, a 20-year member with no prior disciplinary record forfeited 18 suspension days already served after he pleaded guilty to failing to safeguard a prisoner who escaped when member left him unattended in an interview room. Finally, in Case No 83623/08, signed February 12, 2009, a six-year member who pleaded guilty to failing to keep a hospitalized prisoner under constant observation, which resulted in the prisoner's escape, was required to forfeit only ten suspension days already served even though this member had a prior disciplinary adjudication.

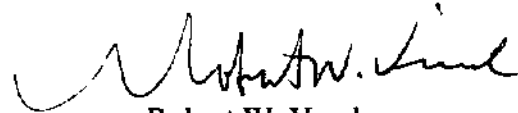
Although a ten or 15 day penalty would be inappropriate here given the Respondent's additional misconduct of failing to immediately notify a supervisor about James' escape, the imposition of a period on dismissal probation does not appear to be warranted or necessary based on the Respondent's misconduct, his disciplinary history or his performance history, which includes consistently good performance evaluations.

Moreover, the penalty that is imposed on the Respondent should closely equate to the penalty imposed on his partner since Gulizio was equally culpable regarding James' escape and since he also failed to immediately notify a supervisor about James' escape even though he had the opportunity to do so when he was standing at the van catching his breath (after he had handed off the pursuit of James to the Respondent because he was

too winded to continue the chase) Gulizio was offered a penalty consisting of the forfeiture of the 21 days he had already served on suspension²

Therefore, it is recommended that the Respondent forfeit the 21 days he has already served on suspension

Respectfully submitted,



Robert W Vinal
Assistant Deputy Commissioner - Trials

APPROVED
AUG 08 2011

RAYMOND W. KELLY
POLICE COMMISSIONER

² This penalty was recommended when Gulizio pleaded guilty at a conference held on June 29, 2010. The Police Commissioner has not yet signed off on this disposition.

POLICE DEPARTMENT
CITY OF NEW YORK

From *Assistant Deputy Commissioner - Trials*
To Police Commissioner
Subject CONFIDENTIAL MEMORANDUM
POLICE OFFICER LUIS LOPEZ
TAX REGISTRY NO 930590
DISCIPLINARY CASE NO 84649/08

The Respondent received an overall rating of 3.5 on his 2009 performance evaluation, 3.5 on his 2008 evaluation, and 3.5 on his 2007 evaluation. He has been awarded two Excellent Police Duty medals [REDACTED]. [REDACTED] He has never been previously adjudicated on Charges and Specifications.

For your consideration



Robert W. Vinal
Assistant Deputy Commissioner – Trials